

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Julian Phillips	Team: Squad #09	CCRB Case #: 201703385	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 03/28/2017 4:20 PM	Location of Incident: Tiffany Street and Garrison Avenue	18 Mo. SOL 9/28/2018	Precinct: 41		
Date/Time CV Reported Tue, 05/02/2017 11:48 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/02/2017 11:48 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Gabrielle Rodriguez	13688	955396	041 PCT
2. POM Eric Smith	25541	948277	041 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Gabrielle Rodriguez	Abuse: Police Officer Gabrielle Rodriguez stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Eric Smith	Abuse: Police Officer Eric Smith stopped the vehicle in which § 87(2)(b) was an occupant.	B . Exonerated
C . POF Gabrielle Rodriguez	Abuse: Police Officer Gabrielle Rodriguez questioned § 87(2)(b)	C . Exonerated
D . POF Gabrielle Rodriguez	Abuse: Police Officer Gabrielle Rodriguez searched the vehicle in which § 87(2)(b) was an occupant.	D . Exonerated
E . POM Eric Smith	Discourtesy: Police Officer Eric Smith spoke discourteously to § 87(2)(b)	E . Unsubstantiated

Case Summary

On May 2, 2017, § 87(2)(b) filed this case with the CCRB via telephone.

On March 28, 2017 at approximately 4:20 p.m., § 87(2)(b) was driving on Tiffany Place in the Bronx in his personal vehicle, which contained dark tinted windows. Police Officer Gabrielle Rodriguez and Police Officer Eric Smith, both of the 41st Precinct observed § 87(2)(b)'s vehicle and activated the lights and sirens in their vehicle, pulling him over (**Allegations A and B**). The officers approached § 87(2)(b)'s vehicle and PO Rodriguez asked § 87(2)(b) a series of questions regarding himself and his vehicle. PO Rodriguez then asked, "nothing crazy in the car that we need to know about, right?" (**Allegation C**). § 87(2)(b) disclosed that he had two knives in his vehicle, and handed one to PO Rodriguez for inspection. PO Rodriguez tested one of the knives, determining that it was a gravity knife. PO Rodriguez asked § 87(2)(b) to step out of the vehicle, and he was placed under arrest. PO Rodriguez entered and searched § 87(2)(b)'s vehicle, recovering an additional knife in the process (**Allegation D**). While the search of his vehicle was occurring, § 87(2)(b) stood at the rear of his car with PO Smith. PO Smith ordered § 87(2)(b) to face away from his vehicle, and when § 87(2)(b) attempted to turn to look inside his vehicle, PO Smith allegedly said, "I said to turn the fuck around" (**Allegation E**). The officers transported § 87(2)(b) to the 41st Precinct stationhouse, where he was charged with § 87(2)(b).

This case has video evidence, a Snag-It copy of which has been placed below. Please note that the full video is embedded in IA#13 and can be found in Board Review 01.



2017-07-12_12-35-08.mp4

Mediation, Civil and Criminal Histories

- This case was deemed ineligible for mediation due to § 87(2)(b)'s arrest.
- As of June 13, 2017, a Freedom of Information Law Request for Notice of Claim filed with the New York City Comptroller indicated that no Notice of Claim has been filed pertaining to this incident (Board Review 02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has four prior CCRB complaints, § 87(2)(g)
[REDACTED]

- § 87(2)(b) [REDACTED]
- [REDACTED]
- [REDACTED]
- PO Rodriguez has been a member of the NYPD for four years and has fifteen prior CCRB allegations involving four cases with no substantiated allegations (Board Review 05).
 - In CCRB case 201700353, PO Rodriguez was alleged to have participated in a vehicle stop and search. These allegations were closed as Complainant Uncooperative.
 - In CCRB case 201701670, PO Rodriguez was alleged to have questioned a male individual standing outside an illegally parked vehicle and to have subsequently searched this vehicle. The CCRB's investigation of this case is ongoing.
- PO Smith has been a member of the NYPD for seven years and has five prior CCRB allegations involving three cases with no substantiated allegations (Board Review 06).
 - In CCRB case 201016359, PO Smith was alleged to have used the word “fuck” when speaking to a civilian who he had pulled over. This allegation was closed as Unsubstantiated.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]

Allegation A – Abuse of Authority: Police Officer Gabrielle Rodriguez stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B – Abuse of Authority: Police Officer Eric Smith stopped the vehicle in which § 87(2)(b) was an occupant.

In his sworn statement to the CCRB, § 87(2)(b) stated that he was driving in his personal vehicle when he observed an unmarked police vehicle with its turret lights activated. § 87(2)(b) stated that his personal vehicle has dark after-market tints in all of its windows (with the exception of the front windshield) that he installed due to a medical condition that makes him sensitive to sunlight. The police vehicle made two successive U-turns and began driving behind § 87(2)(b)'s vehicle, without deactivating its turret lights. Upon driving through an intersection and observing that the police vehicle's turret lights remained activated, § 87(2)(b) pulled over.

In her statement to the CCRB, PO Rodriguez stated that she and PO Smith were driving when they simultaneously observed a vehicle, approximately one to two car-lengths away, with windows that were tinted to the degree that she could not see the interior. PO Rodriguez stated that she and PO Smith observed the vehicle for approximately one minute and collectively decided to pull the vehicle over. The officers activated the turret lights and sirens in their vehicle. The vehicle in question immediately pulled over.

In his statement to the CCRB, PO Smith stated that he and PO Rodriguez were driving when he observed a vehicle, driving in the opposite direction, with all of its windows tinted to the degree that he could not see the interior. PO Smith pointed out the vehicle to PO Rodriguez. After observing the vehicle for approximately 20 seconds, PO Smith resolved to pull over the vehicle in order to conduct further investigation and activated the turret lights and sirens in his vehicle. The vehicle in question quickly pulled over.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. It is therefore recommended that **Allegations A and B** be closed as **exonerated**.

Allegation C – Abuse of Authority: Police Officer Gabrielle Rodriguez questioned § 87(2)(b)

In his sworn statement to the CCRB, § 87(2)(b) stated that, at the time he was approached by PO Rodriguez, his vehicle contained four knives: two in sealed boxes in an open plastic bag on the front passenger seat, one in his tool bag (located on the floor underneath the glove compartment), and one clipped to his belt on his left side. § 87(2)(b) stated that PO Rodriguez approached him while he was sitting in his vehicle, informed him that his windows were tinted,

and asked him why he had spit out the window upon her approach and if he had been arrested previously. § 87(2)(b) also stated that PO Rodriguez asked, “do you have anything in the vehicle you shouldn’t have?” § 87(2)(b) disclosed that he had knives in the vehicle and handed them to PO Rodriguez for inspection. PO Rodriguez then asked § 87(2)(b) to step out of the vehicle.

In her statement to the CCRB, PO Rodriguez stated that upon approaching § 87(2)(b)’s vehicle, she did not suspect him of committing any crime or violation other than driving a car with illegally tinted windows. PO Rodriguez stated that she engaged in a brief conversation with § 87(2)(b) but she could not recall any specific questions that she asked during this conversation. PO Rodriguez stated that § 87(2)(b) disclosed to her that he had knives in the vehicle. PO Rodriguez further stated that, approximately one to two minutes after she began to speak to § 87(2)(b) PO Smith mouthed the word “knife” to her and pointed at his own waist, indicating that he had observed a knife clipped to § 87(2)(b)’s waistband. This led PO Rodriguez to suspect § 87(2)(b) of carrying an illegal knife because, in her experience, knives carried on waistbands are often either gravity knives or switchblades. When specifically asked, PO Rodriguez acknowledged that she may have asked § 87(2)(b) if there was anything “crazy” in his vehicle. Even after reviewing video footage of the incident, PO Rodriguez could not recall if she asked this question before or after PO Smith signaled to her that he had observed a knife on § 87(2)(b)’s waistband.

In his statement to the CCRB, PO Smith stated that, immediately upon approaching § 87(2)(b)’s video, he observed a silver clip on the exterior of § 87(2)(b)’s right pants pocket and the end of an object attached to this clip protruding from § 87(2)(b)’s pocket. Based on his experience, including numerous arrests for the possession of gravity knives, PO Smith believed that this item was a knife. PO Smith mouthed the word “knife” to PO Rodriguez, who asked § 87(2)(b) to step out of the vehicle so the knife could be recovered for safety reasons.

In the video provided to the CCRB by § 87(2)(b) PO Rodriguez is seen approaching § 87(2)(b)’s vehicle and asking a series of simple questions about § 87(2)(b) and his vehicle. Approximately two minutes after engaging § 87(2)(b) in conversation, PO Rodriguez asks, “nothing crazy in the car we need to know about, right?” § 87(2)(b) informs PO Rodriguez that he has two knives that he has recently purchased, shows the sealed boxes to PO Rodriguez, and upon request hands one of the boxes to PO Rodriguez for inspection. PO Rodriguez is seen opening one of the packages, opening and closing a knife with two hands, then holding the closed knife in one hand and making a flicking motion (Board Review 01, beginning at 02:05). After a few more seconds of conversation, PO Rodriguez asks § 87(2)(b) to step out of his vehicle.

It is undisputed that § 87(2)(b) had a visible knife clipped to his person at the time that PO Rodriguez and PO Smith approached his vehicle (although § 87(2)(b) stated that this knife was

clipped to his left side, rather than his right side as described by PO Smith). § 87(2)(g)

The courts have long held (e.g. *New York v. Hollman*, 79 N.Y.2d 181 [1992]) that an officer may ask a question that would lead a person to believe that he is suspected of wrongdoing if this officer has “founded suspicion that criminality is afoot” (Board Review 08).

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **exonerated**.

Allegation D – Abuse of Authority: Police Officer Gabrielle Rodriguez searched the vehicle in which § 87(2)(b) was an occupant.

In his sworn statement to the CCRB, § 87(2)(b) stated that, upon exiting his vehicle as requested by PO Rodriguez, he left the front driver-side door ajar. § 87(2)(b) further stated that he and PO Rodriguez did not discuss her searching his vehicle at this time, and he did not offer consent for her to search his vehicle. § 87(2)(b) stated that he was then escorted by PO Smith to the rear of his vehicle, where he stood facing away from the vehicle. § 87(2)(b) stated that he believed that PO Rodriguez was searching his vehicle at this time—and specifically told PO Smith that he wished to observe PO Rodriguez conduct this search—but was unable to see what PO Rodriguez was doing because PO Smith prevented him from turning around. After standing for approximately five to seven minutes at the rear of the vehicle, § 87(2)(b) was approached by PO Rodriguez, who informed him that his knives were illegal.

In his statement to the CCRB, PO Smith stated that, after he escorted § 87(2)(b) to the rear of his vehicle, PO Rodriguez entered the vehicle and recovered three knives that were in plain view, two on the front passenger seat and one in the center console. PO Rodriguez was the first officer to observe these knives. PO Smith did not know if PO Rodriguez had any suspicion that there were other knives in the vehicle prior to entering the vehicle, and PO Rodriguez did not indicate to PO Smith why she entered the vehicle.

In her statement to the CCRB, PO Rodriguez stated that, after PO Smith escorted § 87(2)(b) to the rear of the vehicle, she entered the vehicle in order to recover knives that were located on the front passenger seat. PO Rodriguez could not recall the precise number of knives that she recovered. PO Rodriguez was inside the vehicle for approximately one to two minutes.

In the video provided to the CCRB by § 87(2)(b) § 87(2)(b) hands PO Rodriguez a total of two knives: one in a box that he retrieves from the area of his front passenger seat (not visible)

and a third that he retrieves from the area of his waistband (not visible). § 87(2)(b) also shows PO Rodriguez a sealed box containing a third knife, which he does not hand her. § 87(2)(b) then tells PO Rodriguez, “Look, I’m a truck driver. I mean, let’s be real. I have a bunch of knives.” PO Rodriguez immediately asks § 87(2)(b) to step out of the vehicle and, upon frisking him, enters the open front driver-side door of the vehicle. For approximately four minutes, the video shows PO Rodriguez searching the car, including removing various items from the center console and entering a black bag located on the rear seat (Board Review 01, beginning at 03:00).

Courts have repeatedly held (e.g. *People V. Galak*, 81 N.Y.2d 463 [1993]) that, pursuant to an arrest, police may search a vehicle without a warrant if they have probable cause to believe that there is contraband inside the vehicle that is related to the crime for which the arrest was made (Board Review 09).

§ 87(2)(g)
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It is therefore recommended that **Allegation D** be closed as **exonerated**.

Allegation E – Discourtesy: Police Officer Eric Smith spoke discourteously to § 87(2)(b)

§ 87(2)(b)
In his sworn statement to the CCRB, § 87(2)(b) stated that, after walking to the rear of his vehicle with PO Smith, he turned to look inside his vehicle. § 87(2)(b) stated that PO Smith then ordered him to turn around, and that he responded that he wanted to observe PO Rodriguez search his vehicle. § 87(2)(b) alleged that PO Smith then said “I said to turn the fuck around.”

In her statement to the CCRB, PO Rodriguez stated that, while she was inside § 87(2)(b)s vehicle, she observed PO Smith and § 87(2)(b) standing at the rear of the vehicle, with PO Smith facing the vehicle and § 87(2)(b) facing away from the vehicle. PO Rodriguez stated that she did not make any other observations about PO Smith and § 87(2)(b) during this time, and did not hear any conversation between them or see § 87(2)(b) attempt to turn around. PO Rodriguez did not hear PO Smith order § 87(2)(b) to position himself with his back to the car or to turn around, and she did not hear PO Smith say “I said to turn the fuck around.”

In his statement to the CCRB, PO Smith stated that, upon walking to the rear of the vehicle, § 87(2)(b) § 87(2)(b) leaned against the rear bumper. PO Smith stated that he ordered § 87(2)(b) to stand with his back to the vehicle. PO Smith stated that § 87(2)(b) then attempted to turn to look inside the vehicle, and PO Smith ordered him to turn around approximately two to three times

before § 87(2)(b) complied. PO Smith stated that he did not say “I said to turn the fuck around” or otherwise use profanity while ordering § 87(2)(b) to turn.

The video provided to the CCRB by § 87(2)(b) shows PO Smith and § 87(2)(b) walking to the rear of the vehicle, but does not record any conversation between them and does not show § 87(2)(b) attempting to turn around. At a certain point in the video (Board Review 01, beginning at 06:00) PO Rodriguez is seen abruptly exiting § 87(2)(b)'s vehicle, which she is in the process of searching, and making a thumbs-up gesture in the direction of PO Smith and § 87(2)(b). Both officers reviewed this portion of the video and were asked why PO Rodriguez had made that gesture at that particular moment. Both officers stated that PO Rodriguez was asking PO Smith if he required assistance at that time, but neither recalled what triggered this question.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

Squad: 9

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date